

**DEPARTMENT
POLICY**

The Refugee Cash Assistance program (RCA) is temporary cash assistance to support an individual's or a family's movement to self-sufficiency. The recipients of RCA engage in employment and self-sufficiency related activities so they can become self-supporting.

Federal and state laws require each mandatory participant in the RCA group to participate in the employment-related activities provided through a refugee contractor unless temporarily deferred. RCA recipients must participate in employment and/or self-sufficiency related activities to increase their employability and obtain employment. The refugee contractor must document these activities in the Refugee Family Self-Sufficiency Plan (RFSSP). The refugee contractor and Michigan Department of Health and Human Services (MDHHS) should ensure that the RFSSP assesses each individual member of the household that can benefit from refugee social services in order to facilitate economic self-sufficiency, family stability, and community integration for the household. MDHHS must also monitor these activities and maintain a record of the recipient's participation, as supplied by the refugee contractor. The refugee employment program as implemented by the refugee contractor is administered by the Michigan Department of Labor and Economic Opportunity (LEO), Office of Global Michigan Refugee Services.

Temporarily deferred RCA recipients not referred to employment-related activities may volunteer to participate in other activities to overcome barriers so they may eventually be referred to the refugee contractor. The refugee contractor must document these activities in the RFSSP. MDHHS must also monitor these activities and maintain a record of the recipient's participation, including the RFSSP, as supplied by the refugee contractor.

A mandatory participant who refuses, without good cause, to participate in assigned employment and/or other self-sufficiency related activities is subject to penalties; see *BEM 233C, Failure to Meet Employment Requirements: RCA*.

Do not delay approval of RCA benefits solely for employment and self-sufficiency activity requirements. Participation in self-sufficiency activities is not a condition of initial eligibility, however it is a condition of continued eligibility.

**INFORMING
CLIENTS**

The MDHHS-1171-INFO, Information Booklet, provides each applicant with information about the participation requirements for RCA. The same information is provided in the MI Bridges online application. Review information found in the Information Booklet or direct the applicant to review his/her MI Bridges online application, with the recipients at application, redetermination and when a change in circumstances might affect the person's required participation. Review all the following information:

- Program requirements and reasons why an individual may be deferred from program participation.
- Rights and responsibilities.
- Self-sufficiency requirements.
- Penalties for noncompliance, good cause, and the triage and hearings process.

**REASONABLE
ACCOMMODATION****Disability
Definition**

Section 504 of the Americans with Disabilities Act defines a disability as a physical or mental impairment that substantially limits one or more major life activities; or a history of such an impairment; or being regarded as having such an impairment. Examples of major life activities include: thinking, learning, taking care of oneself, maintaining social relationships, sleeping and communicating.

A number of RCA recipients have disabilities or live with a spouse with disabilities that may need accommodations to participate in assigned activities. The needs of persons with disabilities are highly individual and must be considered on a case-by-case basis. MDHHS must make reasonable efforts to ensure that persons with disability-related needs or limitations will have an effective and meaningful opportunity to benefit from MDHHS programs and services to the same extent as persons without disabilities. Efforts to accommodate persons with disabilities may include modifications

to program requirements, or extra help as explained below. Failure to recognize and accommodate disabilities undermines efforts to assist families in achieving self-sufficiency.

When a client requests reasonable accommodation in order to participate, MDHHS and the refugee contractor will consider the need for applying the above requirements.

A disability as defined above that requires reasonable accommodation must be verified by an appropriate source such as a doctor, psychologist, therapist or educator. A client may disclose a disability at any time. Failure to disclose at an earlier time does not prevent the client from claiming a disability or requesting an accommodation in the future.

Screening and Assessment

Be alert to undisclosed or unrecognized disabilities and offer screening and assessment as appropriate. Help clients understand that MDHHS can only offer accommodations if a disability is verified. Clients are screened for disabilities on the MDHHS-DHS-1171, Assistance Application, and the MDHHS-1171-CASH, cash specific supplement form, which ask questions about medical problems and special education.

Inform clients requesting accommodation or deferral that they may be required to attend appointments with doctors, psychologists, or others to ensure that appropriate accommodations or deferrals are made. Explain that assessment is voluntary but failure to cooperate with assessment may prevent MDHHS from providing a deferral or accommodation. Also inform the client of the requirement to engage in self-sufficiency and family strengthening activities even if he/she is deferred from work participation program or work activities and may be subject to penalties if he/she does not participate as required.

Accommodation

When information provided by an appropriate source indicates the need for reasonable accommodation, do the following:

- Obtain a DHS-54A, Medical Needs, form from a qualified medical professional listed on the form.

- Consult Michigan Rehabilitation Services (MRS) if additional information about appropriate accommodations is needed or when you need advice.
- Document the accommodation on the *Additional Comments* section of the DHS-4785-R that is submitted to the refugee contractor.

Justification for a plan including reasonable accommodation is documented in the client's RFSSP by the refugee contractor or MDHHS specialist, as appropriate.

When clients with verified disabilities are fully participating to their capability, they are counted as fully engaged in meeting work participation requirements regardless of the hours in which they are engaged, even if they do not meet federal work requirements

MANDATORY PARTICIPATION IN EMPLOYMENT SERVICES

All mandatory participants, unless deferred, must engage in employment that pays at least the state minimum wage or participate in employment services provided through a refugee contractor.

Note: For RCA mandatory participants who reside in counties that do not have a primary refugee contractor, the individual will be automatically referred via the One Stop Management Information System (OSMIS) to the one-stop service center serving the client's area; see *BEM 229, PATH Program Referrals and the Application Eligibility Period*. However, these individuals are still required to meet employment and/or self-sufficiency related activities as outlined in this item. They should not be held to the same requirements as Family Independence Program (FIP) recipients.

The Refugee Employment Program

Most mandatory participants are referred to the refugee employment program provided by the refugee contractor serving that recipient's area when one of the following exists:

- A mandatory participant applies for RCA.

- A mandatory participant applies to be a member added to an RCA group.
- A mandatory participant is no longer temporarily deferred from work requirements.
- A participant that is deferred from work requirements volunteers to participate.

Referral to the Refugee Contractor

Mandatory participants are referred to the refugee contractor upon application for RCA, when a recipient's reason for deferral ends, or a member add is requested. When a referral to the refugee contractor is required, the specialist must manually generate the DHS-4785R.

The specialist must notify the refugee contractor of this referral via the process developed by the local office and the refugee contractor.

The last date for a client to make contact with the refugee contractor is 30 days from the date the DHS-4785R is sent. If a mandatory participant calls to indicate that he or she needs more time to attend orientation at the refugee contractor, the specialist will contact the refugee contractor provider to extend the deadline.

The DHS-4785R must be returned to the MDHHS local office with a date stamp from the refugee contractor to verify completion of the orientation.

RCA recipients may have limitations that support the need for special accommodations, which may include reduction in the employment-related activities in which they are able to participate; see *Reasonable Accommodations* in this item.

Special Needs Participants

Determine appropriate participation and types of supports for the following groups considering reasonable accommodations earlier in the item. Certain clients have particular circumstances which may make their participation in employment and/or self-sufficiency related activities problematic. Unless otherwise deferred, they must be referred to the refugee contractor. Reasonable accommodations

are to be entered in Bridges case comments as well as being communicated to the refugee contractor on the DHS-4785-R.

Examples of these circumstances include:

- Prescribed medication to control mental illness.
- Ongoing substance abuse treatment.

Former Recipients

Refugees are eligible for refugee-specific employment services for the first five years they are in the country, regardless of whether they receive assistance from MDHHS.

MANDATORY PARTICIPANTS DELAYED REFERRAL TO THE REFUGEE CONTRACTOR

Mandatory participants may request to be temporarily deferred from participation in employment services at the refugee contractor.

Working 40 Hours Per Week

Applicants and members added to the RCA group who are working a minimum of 40 hours per week at the state minimum wage are not referred to the refugee contractor. This client's participation in employment is meeting requirements.

Lack of Child Care

In the Employment Services - Detail screen in Bridges, select the *No Child Care for Child Under Six* deferral reason and reply to questions regarding child care when a guardian personally provides care for a child under age 6 and adequate child care is unavailable. Adequate child care meets all the following:

- Appropriate. The care is appropriate to the child's age, disabilities and other conditions.
- Reasonable distance. The total commuting time to and from work and child care facilities does not exceed three hours per day.
- Suitable provider. The provider meets applicable state and local standards. License exempt providers who are not licensed by the Michigan Department of Licensing and

Regulatory Affairs (LARA) Child Care Licensing Bureau (CCLB) must meet Child Development and Care (CDC) enrollment requirements.

- Affordable. The child care is provided at the rate of payment or reimbursement offered by the CDC program.

Clients who need assistance in finding a licensed provider should be referred to Great Start to Quality, the online early learning resource site, at www.greatstarttoquality.org. All active licensed providers in good standing are searchable. If additional assistance is needed, clients can be referred to 877-614-7328 to reach the Great Start to Quality Resource Center serving their county. Resource centers can provide personal consultation for families in need of child care. If a provider cannot be located, the client needs to provide verification.

If a provider is located within 10 calendar days, end the deferral on the Employment Services Detail screen in Bridges. The specialist must generate the DHS-4785-R and complete the referral to the refugee contractor.

If the client is unable to obtain child care that meets the conditions above within 10 calendar days, the client may be deferred from referral to the refugee contractor for 90 days or until the child turns age 6, or until appropriate care is available, whichever is sooner. Bridges will change the deferral code to mandatory participant at the end of the deferral period. The specialist must generate the DHS-4785-R and complete the referral to the refugee contractor. Document the referrals and results in the case record. The Deferral/Participation Reason is identified as No Child Care Available.

Domestic Violence

Domestic violence means one or more threats or acts against any family member concerning any of the following:

- Physical injury.
- Sexual abuse.
- Sexual involvement of a dependent child.
- Mental/emotional abuse.
- Neglect or deprivation of medical care.

Defer clients with a documented claim of threatened or actual domestic violence against themselves that can reasonably be expected to interfere with work requirements.

Assist the client to develop a plan intended to overcome domestic violence as a barrier to self-sufficiency. The plan may include participation in services for domestic violence victims or receipt of related professional care. Specific activities which might reasonably be expected to endanger the client should be avoided. Document the clients' agreement in the RFSSP.

The maximum deferral period is three months. Bridges will change the deferral code to mandatory participant at the end of the deferral period. The specialist must then manually generate the DHS-4785R and complete a referral to the refugee contractor.

With documented supervisor approval, extensions are permitted in three-month increments.

Use the client's written statement as documentation unless there is sufficient reason to question it. If the statement is questionable, request further documentation, including any of the following:

- Service from a domestic violence provider.
- Medical records.
- Court records, such as personal protection order or petition.
- Police records (for example, domestic disturbance response).
- Statement by a licensed therapist or counselor.
- Other case record information (including children's services).
- School records (for example, statement by a school counselor).

Note: All information concerning domestic violence is confidential; see *BAM 310, Confidentiality and Public Access to Case Records*.

Disability

Information recorded in Bridges will defer the following:

- Recipients of RSDI based on disability or blindness.
- Persons found eligible for RSDI based on disability or blindness who are in non-pay status.

RFSSP Data Entry

Assign clients to self-sufficiency or barrier removal activities as medically permissible. Enter these activities on the RFSSP.

Short-Term Incapacity

Persons with a mental or physical illness, limitation, or incapacity expected to last less than three months and which prevents participation may be deferred for up to three months.

Verify the short-term incapacity and the length of the incapacity using a DHS-54A, Medical Needs, or other written statement from an M.D./D.O./P.A. Set the medical review date accordingly, but not to exceed three months.

Do not advise clients with a short-term incapacity to apply for SSI.

Long-Term Incapacity

At intake, redetermination, or any time during an ongoing benefit period, when an individual claims to be disabled or indicates an inability to participate in work or with the refugee contractor for more than 90 days because of a mental or physical condition, the client should be deferred in Bridges. Conditions include medical problems such as mental or physical injury, illness, impairment or learning disabilities. This may include those who have applied for RSDI/SSI.

RCA applicants/recipients who are already receiving MA based on their own disability and/or blindness, meet the medical deferral requirements for incapacitated up to the medical review date stated on the DHS-49-A, as determined by the DDS 7/1/2015 and after.

Note: A person with a condition or impairment that is pregnancy-related must be deferred for a problem pregnancy. These individuals should not be referred to the DDS or to an SSI advocate if the **only** conditions or impairments are due to pregnancy; see *Pregnancy Complications* in this item.

Step One: Establishment of Disability

Once a client claims a disability, he/she must provide MDHHS with verification of the disability when requested. The verification must indicate that the disability will last longer than 90 calendar days. If the verification is not returned, a disability is not established. The client will be required to fully participate with the refugee contractor as a mandatory participant; see *Verification Sources* in this item.

In Bridges, the Deferral/Participation Reason is *Establishing Incapacity* while awaiting the verification that indicates the disability will last longer than 90 days.

At application, the RCA may be approved once the client has verified the disability will last longer than 90 days, assuming all other eligibility requirements have been met.

If the returned verification indicates that the disability will last 90 days or less; see Short-Term Incapacity in this item.

Step Two: Defining the Disability

For verified disabilities over 90 days, see *BAM 815, Medical Determination and Disability Determination Service*, for the policy requirements in obtaining a medical certification from DDS. If the client does not provide the requested verifications, the RCA should be placed into closure for failure to provide needed documentation.

For verified disabilities over 90 days, the client must apply for benefits through the Social Security Administration (SSA) before step three; see *BAM 815, Medical Determination and Disability Determination Service* and *BEM 270, Pursuit of Benefits*.

In Bridges, the Deferral/Participation Reason is *Establishing Incapacity* while awaiting the DDS decision.

Step Three: Referral to DDS

Send the completed required forms, along with any medical evidence provided, to the DDS to begin the medical development process.

The Deferral/Participation Reason in Bridges remains *Establishing Incapacity*.

Manually set a reminder in Bridges for a three-month follow-up.

DDS DECISION

Upon the receipt of the DDS decision, review the determination and information provided by DDS. Establish the accommodations the recipient needs to participate with the refugee contractor or to complete self-sufficiency-related activities. Follow the procedure for accommodating disabilities; see *Reasonable Accommodation* in this item.

**Disabled-
Potentially Eligible
for RSDI/SSI**

After DDS determines a recipient meets the established disability criteria, verify the following:

- Update the *Disability Determination- MRT and Employment Services* screen to indicate the recipient is *Incapacitated more than 90 Days*.
- The Cash-EDG Summary will show the Deferral/Participation Reason of *Incapacitated More Than 90 days*.

**When to Request a
New DDS Decision**

After a DDS decision and/or SSA medical determination has been denied and the client states their existing condition has worsened or has a new condition resulting in disability greater than 90 days, verify the new information using a DHS-54-A. If the returned verification confirms the above, see BAM 815.

The specialist must assign and maintain RFSSP activities to ensure continued pursuit of self-sufficiency.

If new medical evidence is not provided, do not send the case back to the DDS. The previous DDS decision stands.

**INDIVIDUALS NOT
REQUIRED TO
PARTICIPATE WITH
THE REFUGEE
CONTRACTOR****Aged 65 or Older**

Recipients ages 65 and over are not required to participate in employment and/or family self-sufficiency plans. However, they may be referred to the refugee contractor as volunteers.

Disqualified Non-Citizens

An individual who is not eligible for RCA due to a non citizenship status is not referred to the refugee contractor; see *BEM 630, Refugee Assistance Program*.

**REQUEST FOR
TEMPORARY
DEFERRAL FROM
THE REFUGEE
CONTRACTOR****Deferral Not
Granted**

Take the following actions when a request for deferral is not granted:

- Document in the case file and in Bridges the basis of the decision including any limitations or restrictions.
- Inform the recipient that the criteria for the deferral were not met and therefore participation with the refugee contractor is mandatory.
- Refer the recipient to the refugee contractor, using the manually generated DHS-4785R and the established process between the local office and the refugee contractor. Provide all information on any limitations to full participation when making this referral.

Advise the recipient of his/her right to:

- Discuss the deferral decision with a supervisor.
- File a grievance with the refugee contractor if he/she disagrees with the activities assigned at the refugee contractor.
- File a hearing regarding denial of support services such as transportation services, translation services, or a decrease in benefits.

Note: When a deferral is not granted, it is not a loss of benefits, termination or negative action. When a participant requests a

hearing based on not being granted a deferral, be sure to advise the recipient at the pre-hearing conference and use the DHS-3050, Hearing Summary, to inform the administrative law judge the action did not result in a loss of benefits or services. Be sure the participant understands the time to file a hearing is once he/she receives a Notice of Case Action for noncompliance.

Deferral Granted

When a request for deferral is granted, take the following actions:

- Enter the supporting information into Bridges.
- Determine the length of the deferral.
- Notify the recipient of the decision and length of deferral. Notify the refugee contractor of the deferral status via the established process between the local office and the refugee contractor.
- Document the decision in the case file and in Bridges case comments.

A Bridges task and reminder is sent to the worker for follow-up to review the deferral four calendar days before the end of the month before it is to expire.

PARTICIPATION AT THE REFUGEE CONTRACTOR

The mandatory participant must attend orientation and participate at the refugee contractor for employment and self-sufficiency activities. If the mandatory participant does not comply with these activities, he/she may face penalties and potential closure of his/her RCA; see *BEM 233C Failure to Meet Employment And/Or Self-Sufficiency Requirements: RCA*.

Participation in Refugee Contractor Activities

Mandatory participants in the RCA program must comply with certain work-related requirements in order to maintain RCA. However, unlike FIP benefits, there are no hourly work participation requirements. In order to maintain the RCA benefit, they do have to work or engage in activities leading to employment or self-sufficiency.

Refugee Family Self-Sufficiency Plan (RFSSP)

The mandatory participant is required to complete an RFSSP with the refugee contractor. The RFSSP is to be developed collaboratively with the mandatory participant and the refugee contractor case manager to address the goals and responsibilities to be met by the mandatory participant and the refugee contractor. The RFSSP should contain both the goals agreed to by the mandatory participant and the refugee contractor, as well as the specific activities the mandatory participant will take to reach the goals.

The RFSSP is to be completed within 30 days of the referral to the refugee contractor. The mandatory participant and refugee contractor case manager must agree to all goals and activities assigned in the RFSSP and both must sign and date the RFSSP. The refugee contractor must submit a copy of the signed RFSSP to the specialist via the process developed by the local office and the refugee contractor. If changes or updates are made to the RFSSP, the refugee contractor must submit a copy of the updated RFSSP to specialist.

Note: A new RFSSP is required for each new application period.

Employment and/or Self-Sufficiency Related Activities

As developed in the RFSSP, mandatory participants may be required to participate in the following activities:

- Register and participate with the refugee contractor for employment services.
- Create and sign the RFSSP, with the refugee contractor case manager.
- Comply with activities assigned to the mandatory participant on the RFSSP.
- Participate in employment and/or self-sufficiency related activities.
- Accept a job referral and/or offer of employment.
- Participate in any arranged job interview or scheduled appointment.

- Participate in any employability service program which provides job or language training, which is determined to be available and appropriate for the mandatory participant.
- Participate in any social service program if referred and as available in the area in which the mandatory participant resides.

VERIFICATION

Paid Work Activities

The recipient's actual hours of participation in paid work activities must be verified. The specialist may use two consecutive paycheck stubs or wage statements that reflect the average number of hours worked by the client. Paycheck stubs or a collateral contact with the client's manager or supervisor meet the requirement to project the client's hours for six months. Determine the average number of hours worked and document in *Bridges Case Comments*.

Example: Amber submits three consecutive paycheck stubs for pay dates of January 5, 12 and 19. One paycheck stub shows 25 hours worked, one paycheck stub shows 30 hours worked and one pay check stub shows 32 hours worked. The average of the three paycheck stubs is 29 hours per week on average.

Example: Jordan submits two consecutive paycheck stubs for pay dates of January 5 and January 19. The client is paid bi-weekly. One paycheck stub states 60 hours worked and one paycheck stub states 55 hours worked. The average of the two paycheck stubs is 28 hours per week, dropping the fraction (60+55 divided by four weeks) to obtain the weekly average.

Change in hours of Work Activity

When a recipient reports a change in the number of hours of employment during the six-month projection, the specialist must gather actual paycheck stubs that reflect the change. Use a minimum of two new consecutive paycheck stubs, wage statements or the collateral contact to project the new six-month period that begins the month after the month with the change. Document the change in *Bridges Case Comments*.

Non-Paid Activities

Mandatory participants temporarily deferred from participating at the refugee contractor are not required to complete any additional unpaid activities. Document any additional activities in which the individual may be voluntarily participating in *Bridges Case Comments*.

Deferrals

See *Family Independence Program Verification* criteria outlined in *BEM 230A, Employment And/Or Self-Sufficiency Related Activities*, for appropriate verifications for deferrals.

**VERIFICATION
SOURCES****Paid Work
Activities**

Verification of hours the recipient participates in a wage-earning activity is required by the specialist. Use one of the following:

- Two consecutive pay checks stubs that reflect hours worked.
- Collateral contact with the recipient's manager, supervisor, or authorized representative of the employer who is able to verify the hours worked.
- Equifax Verification Services (formerly known as the TALX Work Number).

**SSI/RSDI Based on
Disability /
Blindness**

To verify information regarding SSI or RSDI based on disability or blindness, use one of the following:

- Document from the Social Security Administration.
- DHS-1552, Verification of Application or Appeal for SSI/RSDI.
- Third Party Single Online Query (SOLQ) ED-030.
- Consolidated Inquiry.

EXHIBIT- REFUGEE CONTRACT PROVIDERS

Contractor	County of Service	Telephone Contact
Catholic Charities of Ingham, Eaton and Clinton Counties	Clinton, Ingham and Eaton counties.	517-323-4734
Samaritas	Calhoun and Kalamazoo counties.	269-345-5776
Samaritas	Kent County.	616-356-1934
Jewish Family Services of Washtenaw County	Jackson, Hillsdale, Lenawee, Livingston, and Washtenaw counties.	734-769-0209
Latin Americans United for Progress	Muskegon and Ottawa counties.	616-888-7225
Samaritas	Genesee, Macomb, and Oakland counties.	248-423-2790

Contractor	County of Service	Telephone Contact
International Institute of Metro Detroit	Wayne County	313-871-8600
Samaritas	Technical assistance provider for remote services and consultation only: Alcona, Alger, Allegan, Alpena, Antrim, Arenac, Baraga, Barry, Bay, Benzie, Berrien, Branch, Cass, Charlevoix, Cheboygan, Chippewa, Clare, Crawford, Delta, Dickinson, Emmet, Gladwin, Gogebic, Grand Traverse, Gratiot, Houghton, Huron, Ionia, Iosco, Iron, Isabella, , Kalkaska, Keweenaw, Lake, Lapeer, Leelanau, Luce, Mackinaw, Manistee, Marquette, Mason, Mecosta, Menominee, Midland, Missaukee, Monroe, Montcalm, Montmorency, Newaygo, Oceana, Ogemaw, Ontonagon, Osceola, Oscoda, Otsego, Presque Isle, Roscommon, Sanilac, Saginaw, Schoolcraft, St. Joseph, Tuscola, Shiawassee, St. Clair, Van Buren and Wexford.	248-423-2790

LEGAL BASE

45 CFR 400.75 - 400.81